APPELLATE COURT
OF THE
STATE OF CONNECTICUT

A.C. 47206

ONE EIGHTY-FIVE STAGG ASSOCIATES
V.
LINWOOD AVENUE III, LLC, ET AL.

REPLY BRIEF OF THE PLAINTIFF-APPELLANT

To Be Argued By:

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III. Argument

A. Introduction

Before addressing the arguments of defendants/appellees Linwood Avenue III, LLC, Charles P. McGoldrick, III and Mary Jane McGoldrick, in her Capacity as Conservator for Charles P. McGoldrick, III (collectively, the "Defendants"), it is critical to remember that the trial court's decision to grant the Defendants' oral motion for directed verdict was based on three determinations: 1) The plaintiff One Eighty-Five Stagg Associates (the "Plaintiff") presented no evidence of the Defendants' negligence; 2) The Plaintiff presented no evidence that the Defendants' alleged negligence was the proximate cause of the Plaintiff's damages; and 3) The Plaintiff presented no evidence that either of the Defendants was in possession or control of the tank which leaked oil (the "Oil Tank") onto the properties of both the Defendants and the Plaintiff. Tr. 12/12/2023, p. 20. Pl. App. p. 178. In its initial brief, the Plaintiff detailed the substantial evidence presented in support of all three. In determining whether the directed verdict was improper, the Court must the evidence in a light most favorable to the Plaintiff. Young v. Rutkin, 79 Conn. App. 355, 363 cert. denied, 266 Conn. 920 (2003).

Additionally, the trial court made three improper and highly prejudicial evidentiary rulings which prevented the Plaintiff from presenting relevant and probative evidence in support of its claims. In the end, the trial improperly kept important evidence from the jury and then did not even allow the jury to deliberate on the evidence that the trial court permitted the Plaintiff to present.

In this reply brief, the Plaintiff will begin by addressing the Defendants' arguments related to whether the trial court erred in granting the Defendants' motion for directed verdict. Next, the Plaintiff will address the Defendants' waiver arguments concerning the evidentiary issues on appeal. Lastly, the

Plaintiff will address the Defendants' arguments regarding the merits of those evidentiary issues.

B. Defendants' arguments concerning the directed verdict.

1. The jury was entitled to make reasonable inferences from the evidence.

"Directed verdicts are historically not favored and can be upheld on appeal only when the jury could not have reasonably and legally reached any other conclusion." Young v. Rutkin, 79 Conn. App. 355, 363 cert. denied, 266 Conn. 920 (2003). The question, therefore, is not whether the jury, if permitted, would have ruled in favor of the Plaintiff; rather, the question is whether, looking at the evidence in a light most favorable to the Plaintiff, the jury could have reasonably ruled in the Plaintiff's favor. In fact, even counsel for the Defendants agreed that "[i]t's the jury's role to evaluate evidence using common sense and reasonableness to determine if the evidence makes sense. Tr. 12/7/2023, p. 23. Based on the evidence outlined in the Plaintiff's initial brief and below, it is unquestionable that the jury could have reasonably concluded in favor of the Plaintiff on the issues surrounding negligence.

In determining whether the jury could have ruled in favor of the Plaintiff, it is important to remember that the jury is entitled to draw inferences from the evidence presented. "It is the function of the jury to draw whatever inferences from the evidence or facts established by the evidence it deems to be reasonable and logical." Procaccini v. Lawrence & Mem'l Hosp., Inc., 175 Conn. App. 692, 716 (2017). "Proof of a material fact by inference from circumstantial evidence need not be so conclusive as to exclude every other hypothesis. It is sufficient if the evidence produces in the mind of the trier a reasonable belief in the

probability of the existence of the material fact." Id. at 717 (emphasis in original). While mere speculation is not permitted, "an inference need not be compelled by the evidence; rather, the evidence need only be reasonably susceptible of such an inference." Id.

The elephant in the room- the evidence that the Oil Tank was not intended for outdoor use- is barely addressed by the Defendants in their brief. This evidence rises far beyond the criteria of reasonableness to lift it outside the realm of speculation into a valid inference that could have been relied upon by the jury.

2. This is not a premises liability case.

In the brief of the Defendants/Appellees, on pages 11 through 17 of their brief, the Defendants go to great lengths describing how, in their opinion, the Plaintiff failed to submit evidence to support a claim of premises liability. What the Defendants fail to understand, however, is that this is not a premises liability case. Instead, the First and Second Counts allege ordinary negligence, the Third and Fourth Counts allege negligent nuisance, and the Fifth through Eighth Counts all assert the violation of Connecticut statutes.[1] Accordingly, in determining whether the trial court properly granted the Defendants' motion for directed verdict, the requirements for premises liability are irrelevant. As such, for example, the Plaintiff was never required to present evidence of the Defendants' possession or control of the Oil Tank.

"Whether the complaint alleges a claim for premises liability or ordinary negligence has particular legal significance because these claims are distinct causes of action that do not require proof of the exact same elements." Demello v.

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[1] Significantly, the trial court's decision granting the Defendants' motion for directed verdict, was silent as to the Plaintiff's statutory causes of action.

Lakeside Club, Inc., 2024 WL 1171687, at *3 (Conn. Super. Ct. Mar. 12, 2024), quoting Silva v. Walmart, Inc., 2020 WL 3058145, at *2 (Conn. Super. Ct. May 8, 2020). In a premises liability case, the "possessor of land has the duty to an invitee to reasonably inspect and maintain the premises in order to render them reasonably safe" and "must warn an invitee of dangers that the invitee could not reasonably be expected to discover." Sweeney v. Friends of Hammonasset, 140 Conn. App. 40, 48 (2013). The case before the Court contains no claim that the Plaintiff was an invitee who was injured on the Defendants' property. The parties are next-door neighbors – the Plaintiff was not an invitee.

"[A] claim sounds in ordinary negligence, and not premises liability, where the plaintiff has not alleged the crucial fact which would create a premises liability case: possession and control of the property." Seymour v. Equinox Greenwich Old Track Rd., Inc., 2020 WL 8261624, at *2 (Conn. Super. Ct. Dec. 3, 2020) quoting Fagan v. State Dep't of Transp., 2013 WL 3215225, at *4 (Conn. Super. Ct. June 7, 2013); accord Demello v. Lakeside Club, Inc., 2024 WL 1171687, at *3 (Conn. Super. Ct. Mar. 12, 2024). The operative complaint in this case, dated November 1, 2022, contains no allegations of possession or control. This is not a premises liability case and the Plaintiff should not be held to premises liability requirements.

3. The Plaintiff, nevertheless, presented ample evidence of possession or control of the Oil Tank.

In the event that this Court were to reject the above argument, or otherwise determine that the Plaintiff was required to present evidence of possession or control of the Oil Tank, ample evidence of the Defendants' control of the Oil Tank was admitted into evidence. Such evidence is detailed at pages 17 through 21 of the Plaintiff's initial brief, and includes the following:

- Plaintiff's Exhibit 16, the redacted account notes from Santa Fuel which were admitted as a full exhibit, provides the following note entered on the day of the fuel oil spill (the "Fuel Oil Spill"), June 3, 2020, stating, in part:

  Per Bob Shaw – Re cottage account – no hot water – tank out of oil. Tank empty, its leaking out the bottom. I put customer on a can. … Mr McGoldrick said he would call Santa tomorrow … DEP notified … Emailed safety incident group.

- Plaintiffs Exhibit 20, Pl. App. p. 209 includes the June 3, 2020, Santa Fuel Invoice which names the account as "McGoldrick Investment Property," identifies the Delivery/Service Address as 284 Linwood Ave., Fairfield, Connecticut, and states: "No hot water, tank out of oil, tank empty and it's leaking out the bottom. I put customer on a can. … Mr McGoldrick said he would call Santa tomorrow …"

Looking at this evidence, in a light most favorable to the Plaintiff, the jury clearly was entitled to infer that the Defendants had possession or control of the Oil Tank.

4. The Plaintiff presented ample evidence of the cause of the Fuel Oil Spill.

The Defendant's assertion that the Plaintiff failed to provide evidence of the specific defect causing of the Fuel Oil Spill, as argued at pages 14 through 17 of their brief, is misplaced. Again, because this is not a premises liability case, the Plaintiff had no obligation to prove that the Defendants had actual or constructive notice of the specific defect that caused the Plaintiff's damages. Nevertheless, it is disingenuous to suggest that the jury could not have reasonably inferred that the

Defendants had notice of the defective or improper use and maintenance of the Oil Tank and that such improper conduct caused the Plaintiff's damages.

The gravamen of the Plaintiff's case is that the Defendants' improper outdoor use of an indoor oil tank was the reason why the Oil Tank failed and released 184 gallons of #2 fuel oil. Evidence was presented that the Oil Tank was clearly labeled at the top of the tank at eye level with a brass tag which said "for indoor use only." Tr. 12/7/23 pp. 80-81. Pl. App. pp. 131-32 (emphasis added). The presence of this brass tag at the top of the tank, in plain sight, is sufficient evidence to allow the jury to have inferred that the Defendants had specific notice of the improper use of the indoor Oil Tank. With respect to evidence that the improper use of the Oil Tank was the cause of the spill, Mr Kopley explained that outdoor oil tanks are double walled so that "if the tank vessel holding the petroleum product ruptures, something else will collect the product before it's discharged to the ground." Tr. 12/7/23 p. 85-86. Pl. App. p. 133-34. Mr. Kopley further opined that "water likely collected at the bottom of that tank causing the corrosion that we see here and then because there was no secondary containment, nothing to prevent the oil from hitting the ground surface, it just went to the ground." Tr. 12/7/23 p. 85-86. Pl. App. p. 136-37. Accordingly, the jury surely could have reasonably and legally reached the conclusion the Defendants had actual or constructive notice of the improper use and maintenance of the Oil Tank and that such improper conduct was the reason why the Fuel Oil Spill occurred.

5. The Plaintiff was not required to prove that the Defendants reasonably could have discovered the holes in the Oil Tank.

At pages 17-18 of their brief, the Defendants argue that the Plaintiff failed to present evidence that the Defendants reasonably could have discovered the holes in the Oil Tank. Again, this is an ordinary negligence case not a premises

liability case. Under a theory of ordinary negligence, "the test for the existence of a legal duty of care entails (1) a determination of whether an ordinary person in the defendant's position, knowing what the defendant knew or should have known, would anticipate that harm of the general nature of that suffered was likely to result, and (2) a determination, on the basis of a public policy analysis, of whether the defendant's responsibility for its negligent conduct should extend to the particular consequences or particular plaintiff in the case." Sweeney v. Friends of Hammonasset, 140 Conn. App. 40, 47-48 (2013). The Plaintiff did not need to prove that the Defendants could have discovered the holes in the Oil Tank. Rather, the Plaintiff needed to prove that the Defendants outdoor use of an indoor tank constituted a breach of their duty of care resulting in damages to the Plaintiff. As argued above and in the Plaintiff's initial brief, sufficient evidence was presented to allow the jury to conclude that this burden was met.

6. Overwhelming evidence was presented that the Fuel Oil Spill proximately caused damage to the Plaintiff's Property.

At pages 18 through 20 of their brief, the Defendants disingenuously assert that the Fuel Oil Spill did not affect the Plaintiff's property at 186 Linwood Ave. in Fairfield ("the "Plaintiff's Property"). Moreover, the Defendants' claim that the Plaintiff presented no admissible evidence that it suffered actual harm from the Fuel Oil Leak. These assertions are outrageous since the Plaintiff presented overwhelming evidence of substantial harm, including substantial monetary damages for remediation costs through trial of $200,314.26 (Exhibit P-1) and projected future remediation costs of at least $667,000.00. Tr. 12/7/2023, p. 12-24.

In support of this claim that proof of damages was lacking, the Defendants quote Plaintiff's expert witness Christopher Kopley who stated at trial that the

Fuel Oil Spill did not impact soil quality at the Plaintiff's Property. This statement simply reflects that the damage that the Plaintiff suffered was primarily in connection with the groundwater at the Plaintiff's Property. The remediation required at the Plaintiff's Property for the groundwater contamination resulting from the Fuel Oil Spill was extensive. In August 2020 and February 2023, Mr. Kopley and his firm Advanced Environmental Redevelopment, LLC ("AER") completed the installation of nine test borings, completed as shallow monitor wells, at the Plaintiff's property to assess potential impact from Fuel Oil Spill. In August 2020, nearly 1.5 feet of "separate phase, floating petroleum product," i.e, fuel oil from the Fuel Oil Spill, was measured within two monitor wells at the Plaintiff's Property. AER periodically measured and bailed the fuel oil from four wells between August 25, 2020, and May 21, 2021. In fact, as of July 2023 one of the monitor wells still showed the presence of fuel oil at a significant level. Pl. Ex. 14, p. 2. Accordingly, there was overwhelming evidence of damage to the Plaintiff proximately caused by the Defendant's improper outdoor use of an indoor oil tank.

7. The Plaintiff presented sufficient evidence of Charles McGoldrick's personal liability.

Next, the Defendants argue that Plaintiff failed to present sufficient evidence of Charles McGoldrick's personal liability. First, the trial court's decision to grant the Defendants' motion for directed verdict was not based on any failure to show the basis of Charles McGoldrick's personal liability. The trial court, however, did state that the Plaintiff presented no evidence that either Charles McGoldrick or LAIII was in possession or control of the Oil Tank. Tr. 12/12/2023, p. 20. Pl. App. p. 178. As argued above, possession or control need not be proven in an ordinary negligence case. Nevertheless, the evidence

presented in support of that issue is provided at pages 17 through 21 of the Plaintiff's initial brief, as well as Section 3 above. In any case, the Plaintiff has always maintained that Charles McGoldrick's personal liability stems from his own conduct and not via veil piercing or merely because he is a member of Linwood Avenue III, LLC.

Documentary evidence, Plaintiff's Exhibits 16 and 20 in particular, allowed the jury to infer that both Defendants together had control of the Oil Tank at the time of the Oil Spill. The evidence showed that Charles McGoldrick was the sole member of Linwood Avenue III, LLC, he was the person Santa Fuel contacted regarding this property, and immediately after the Fuel Oil Spill, Charles McGoldrick was personally involved in the response. Because the jury was entitled to infer that Charles McGoldrick had control of the Oil Tank and allowed it to be placed outside even though it was clearly marked for indoor use only, the jury is entitled to infer that he was personally responsible to the Plaintiff.

C. The Plaintiff never waived its objections to the trial court's evidentiary rulings.

At pages 22 through 30 of the Defendants' brief, the Defendants make various claims that the Plaintiff has waived its objections to the trial court's evidentiary rulings. As will be shown, all such claims have been adequately preserved for appeal. Before such argument, however, it is critical to understand that the Defendants have misstated the law in on this issue in their brief. Practice Book § 61-10 specifically states that a party's failure to seek articulation shall not be the sole grounds for the appellate court's refusal to review an issue on appeal. Instead, if the appellate court deems articulation appropriate, it may order an articulation from the trial court. P.B. § 6-10 (b). Significantly, this Practice Book rule became effective on January 1, 2013, and drastically changed the prior rule,

Practice Book § 4007,[2] which permitted an appellate court to refuse to review an issue on appeal for a party's failure to obtain articulation of the trial court. Accordingly, the Defendants' multiple citations to case law from before 2013 must be reviewed in this light.

Additionally, "the essence of the preservation requirement is that fair notice be given to the trial court of the party's view of the governing law. A secondary purpose of the preservation requirement is to prevent the possibility that an appellee would be lured into a course of conduct at the trial which it might have altered if it had any inkling that the appellant would … claim that such a course of conduct involved rulings which were erroneous and prejudicial to him." State v. Benedict, 313 Conn. 494, 505–06 (2014) (citations omitted). The Defendants had fair notice that the Plaintiff opposed the evidentiary rulings at issue. There is no claim that the Defendants were lured into any prejudicial conduct at trial.

1. Santa Fuel notes.

First, with respect to the trial court's redactions of the Santa Fuel Notes (Pl. Ex. 16), the Defendants claim that the Plaintiff did not make a clear record of its objections at trial. As recounted in the Plaintiff's initial brief, when counsel for

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[2] Old Practice Book § 4007 provided: "It is the responsibility of the appellant to provide an adequate record for review. The appellant shall determine whether the entire trial court record is complete, correct and otherwise perfected for presentation on appeal. For purposes of this rule, the term 'record' is not limited to its meaning pursuant to Sec. 4013(a)(2), but includes all trial court decisions, documents and exhibits necessary and appropriate for appellate review of any claimed impropriety." McNeil v. Riccio, 45 Conn. App. 466, 476 (1997).

the Plaintiff sought to oppose the trial court's redaction ruling, the trial court refused to allow any argument from Plaintiff's counsel:

> ATTY. CERAMI: Your Honor, if I can get some clarification. The 6/4/2020 note, are we leaving that note in or is that note being removed?
> THE COURT: That note is being removed.
> ATTY. CERAMI: May I be heard on that, Your Honor?
> THE COURT: No. Okay. It's not relevant.
>
> Tr. 12/7/23 p. 30. Pl. App. p. 110.

The trial court's refusal to allow Plaintiff's counsel to articulate the basis of its objection should not be held against the Plaintiff. In fact, Plaintiff's counsel acted in accordance with the Connecticut Rules of Court. "Argument upon such objection or upon any interlocutory question arising during the trial of a case shall not be made by either party unless the judicial authority requests it and, if made, must be brief and to the point." Practice Book § 5-5. Not only did the trial court not request argument on the Plaintiff's objection, the trial court forbade any argument. The trial court's ruling was clear and Plaintiff's counsel was obligated to obey the trial court's ruling.

2. NLC documents.

Next with regards to the documents from the Defendants insurer NLC Insurance Companies ("NLC"), at pages 25-26 of the Defendants' brief, the Defendants refer to the trial court's statement that it would not completely shut the door to admission of NLC's documents. The Defendants, however, fail to accurately state the context of these the trial court's statements. As the transcript reflects, the trial court's statements were in regard to the Defendants' November

20, 2023, motion in limine (Doc. No. 205.00) wherein the Defendants sought to preclude the introduction of any and all testimony and/or evidence from NLC's claims manager and keeper of records as sought in the Plaintiff's November 7, 2023, subpoenas duces tecum. Significantly, while the trial court's ruling on the motion in limine may have allowed the Plaintiff to revisit the admission of the NLC documents during trial, the trial court's granting of NLC's motion to quash and for protective order made such revisit impossible. Since the subpoenas duces tecum of NLC's claims manager and keeper of records were quashed, the Plaintiff was precluded from even obtaining the NLC documents, other than the EFI Global, Inc (the "Engineering Report"), Pl. Ex. 5 (ID only, redacted to exclude any reference to insurance).[3] The Plaintiff had only one of the NLC documents, as to which the trial court later denied admission. Tr. 12/11/23 pp. 2-5. Pl. App. pp. 158-61. As such, the Plaintiff had no ability to ask the trial court to revisit the admission of the NLC documents (other than the Engineering Report which was revisited and precluded from evidence).

3. The Engineering Report.

The Defendants' first argument regarding the Engineering Report is that the Plaintiff failed to preserve the issue of whether the Engineering Report was admissible under Rule of Evidence 4-10 (Defendants' brief at 26). Curiously, after making this assertion, the Defendants then point to the portion of the transcript where the Plaintiff argued that the Engineering Report was admissible, in part, based on Rule of Evidence 4-10. This rule states that the exclusion of evidence of insurance is not required when such evidence is offered for other

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[3] This assumes that the Engineering Report would have been disclosed had the subpoenas duces tecum not been quashed.

reasons such as control. Rule of Evidence 4-10; Auster v. Norwalk United Methodist Church, 286 Conn. 152, 167 (2008) ("Our rules of evidence do not mandate the exclusion of evidence of liability insurance coverage, however, when it is offered for another purpose, such as to prove agency, ownership, control or the bias or prejudice of a witness."). As even the Defendants admit that this issue was raised by the Plaintiff, this claim of waiver appears misplaced.

Second, the Defendants argue that the Plaintiff waived its argument as to admission of the Engineering Report because the author was deposed as a fact witness. As explained in the Plaintiff's initial brief at pages 33-34, the Plaintiff disclosed Jay F. Kramarczyk as an expert witness, but shortly before trial Mr. Kramarczyk backed out of his agreement to testify at trial and refused to answer opinion questions at his deposition in New Hampshire. While the Plaintiff agreed with the deponent to limit deposition questions to fact questions rather than opinion questions, the Plaintiff never agreed that it would not seek to have the Engineering Report admitted into evidence. Court Ex. A and B., Pl. App. pp. 211-16.

Next, the Defendants argue that the Plaintiff has waived its argument that the Engineering Report should have been admitted under the qualified unretained expert privilege because the argument was not made at trial. This argument ignores the fact that the trial court excluded admission of the Engineering Report because at the time of his disclosure as expert witness, Mr. Kramarczyk had not yet agreed to act as an expert witness (although he agreed a short time thereafter). This curious ruling could not have been anticipated and has no support in Connecticut case law, rules, or statutes. Nevertheless, the Plaintiff presented this argument on appeal in support of its argument at trial that an expert's permission is not required as a prerequisite to the admission of his report.

D. Other issues surrounding evidentiary rulings.

In the final section of the Defendants' brief, the Defendants make various arguments, in addition to its waiver arguments, concerning the trial court's evidentiary rulings. Each will be addressed in turn.

1. The redacted portion of the Santa Fuel notes was extremely relevant.

First, the Defendants assert that the redacted portions of the Santa Fuel notes were not relevant to the Plaintiff's claims. At issue is the trial court's ruling that the following be redacted from the June 3, 2020 (time stamp 0:04), and June 4, 2020 (time stamp 21:14):

> Rob-stop delivery tank leaking owner changing out per bob s e-mailed. Mr McGoldrick was upset that we [i.e., Santa Fuel] contacted the DEP regarding the Oil Tank leak at the cottage. He called John Santa to complain. John recommended that Mark Inderdohnen call him to explain why we had to call the DEP. Mark called Mr McGoldrick who continued to use profane language, so the call was discontinued.

Unredacted Pl. Ex 16 (ID only). Pl. App. p. 208.

The unredacted portion is relevant for multiple reasons. First, the language would have allowed the jury to infer that Charles McGoldrick, as sole member of Linwood Avenue III, LLC, understood that he was intimately involved in the management of 284 Linwood and responsible for the Oil Tank. The jury could have reasonably concluded that his being so upset that Santa Fuel contacted the DEP (Department of Energy and Environmental Protection) shows that he

believed himself to be responsible. In other words, permitted the jury to infer that Charles McGoldrick owed a duty of care as to the proper selection and maintenance of the Oil Tank.

Second, despite argument above that this case is not a premises liability action and, therefore, proof of possession or control is not necessary, one of the three stated reasons why the trial court granted the Defendants' motion for directed verdict was that the trial court found that the Plaintiff failed to offer evidence of the Defendants' possession or control of the Oil Tank. The redacted language contains evidence of control that the jury never saw. As such, by redacting the Santa Fuel notes so aggressively, the trial court prevented the Plaintiff from presenting evidence on an issue which the trial court deemed critical. The redacted portion of the Santa Fuel notes were extremely relevant and its exclusion prejudiced the Plaintiff.

2. The redacted portion of the Santa Fuel notes was not hearsay and did not reflect subsequent remedial measures.

The Defendants argue at pages 33 through 35 that the trial court-ordered redactions of the Santa Fuel notes was proper because the notes contained inadmissible hearsay and reflected subsequent remedial measures. The Santa Fuel notes were not hearsay because they were quite clearly business records and admissible under Section 8-4 (a) of the Code of Evidence. The foundation for determining that the account notes were a business record was provided through testimony of Peter Russell, President of Santa Fuel, who confirmed, as required by Section 8-4 (a) of the Code of Evidence, that the record was made in the

regular course of Santa Fuel's business[4] and that it was the regular course of such business to make the writing or record at the time of the act or occurrence, or reasonably thereafter.[5] Tr. 12/7/23 pp. 27-28. Pl. App. p. 107-08.

As for the Santa Fuel note redactions showing the Defendants' subsequent remedial measures, this argument ignores Section 4-7 (a) of the Code of Evidence, which states "evidence of measures taken after an event, which if taken before the event would have made injury or damage less likely to result, is inadmissible to prove negligence or culpable conduct in connection with the event." The portion of the redactions which the Defendants claim show subsequent remedial efforts is the language stating "tank leaking owner changing out". Calling that a subsequent remedial effort is a bit of a stretch. The jury was well aware that Oil Tank had holes and was removed from the site. Of course it had to be replaced. As argued above, one of the reasons why the trial court granted the Defendants' motion for directed verdict was that the trial court believed that Plaintiff failed to offer evidence of the Defendants' possession or control of the Oil Tank. The redacted language concerning Charles McGoldrick

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[4] The December 7, 2023, trial transcript states at pp. 27-28. Q This notation program, is this something you use every time a customer calls in the regular course of your business? A We try to, yes. Q Okay. Do you maintain one of these account note logs on the various different accounts you have with the customers? A Every customer. Pl. App. p. 107-08.

[5] The December 7, 2023, trial transcript states at pp. 27. Within our back office software we can take notes when a customer calls us. So, they call again. We have record of it. It tells a story of what happens on certain dates when we have contact with a customer. So, this is various notes that office staff entered on days that we received calls. Pl. App. p. 107.

changing out the oil would have permitted the jury to infer the control which the trial court deemed necessary. Finally, even if the Court were to determine that "changing out" the Oil Tank was subsequent remedial conduct, such a finding would not justify the redaction of the remainder of the June 4 and June 3 notes.

3. The NLC documents were not prejudicial.

At pages 36 through 38 of their brief, the Defendants argue that the NLC documents were properly excluded as prejudicial. This argument makes no sense since the trial court quashed the subpoenas duces tecum of the NLC claims manager and records keeper, thereby preventing the Plaintiff from ever obtaining the NLC documents. While it is assumed that the Engineering Report would have been among the NLC documents, the remainder of the NLC documents were never obtained and could not be reviewed by the Plaintiff or the trial court. Accordingly, there is no way to conclude that such documents, if obtained, would have been prejudicial.

As for the Engineering Report itself, any reference to insurance could have been easily redacted. Indeed, Plaintiff's Exhibit 5 (ID only) was redacted to exclude reference to NLC Insurance Companies, who commissioned the report. Had the Engineering Report been admitted with such redactions, the jury would have received evidence from Mr. Kramarczyk, the Senior Principal Engineer of EFI Global, Inc., showing 1) the Oil Tank was listed to be installed inside and was installed on the exterior of the building; 2) the Oil Tank tank was at or beyond its expected lifespan; 3) the Oil Tank showed signs of wear and tear and neglect, including vegetation growing over the tank, a broken fuel level gauge, and external oxidation; and 4) the broken fill gauge allowed water to enter the tank and corrode the tank from the interior. The probative value of the Engineering

Report would have been enormous. The exclusion of the Engineering Report caused the Plaintiff extreme prejudice.

4. The Defendants' counsel attended Mr. Kramarczyk's deposition.

In the final section of the Defendants' brief, they claim that the Engineering Report was properly excluded because the Defendants did not have an opportunity to depose Mr. Kramarczyk. This argument is shocking since counsel for the Defendant, William Monigan of Gerber Ciano Kelly Brady LLP, did attend the December 1, 2023, deposition of Mr. Kramarczyk. At that deposition, the Defendants' counsel had the opportunity to ask Mr. Kramarczyk anything he wished.

Moreover, the Plaintiff disclosed Mr. Kramarczyk as an expert witness on October 27, 2022, more than one year before trial. Had the Defendants wished to separately depose him, they had over one year to do so.

Finally, the authority cited by the Defendants to support this idea, that a party must have an opportunity to depose an opponent's expert witness, contains no language to support this argument. The Defendants cite to Message Ctr. Mgmt., Inc. v. Shell Oil Prod. Co., 85 Conn. App. 401, 418 (2004) for the proposition "it is well settled both that opinion evidence is generally only admissible when provided from an expert, and that parties are entitled to depose expert witnesses (including with respect to the methodology they used to reach their opinions) …" Defendants' Brief, pp 38-39. Message Ctr. Mgmt., Inc. v. Shell Oil Prod. Co., however, contains no supporting language. Page 418 of this decision, as cited by the Defendants, contains general language of expert witness rules but says nothing about depositions.

E. Conclusion and Relief Sought

The trial court's decision should be reversed and this matter should be remanded for a new trial. The directed verdict against the Plaintiff was improper because the trial court failed to consider the evidence in a light most favorable to the Plaintiff and prevented the jury from making reasonable inferences on issues of negligence. Clear evidence of the negligent use and maintenance of an indoor tank during the brutal outdoor winters of New England were dismissed by the Court, summarily, as irrelevant.

The trial court's decision should also be reversed because its improper evidentiary rulings prevented the Plaintiff from providing additional evidence on the areas which the trial court deemed lacking. The jury was hamstrung because evidence was not permitted to be introduced in several instances. The bottom line is that evidence at trial clearly showed that the Defendants' negligent outdoor use and maintenance of the indoor Oil Tank caused substantial harm to the Plaintiff. The excluded evidence only provided further support of the Plaintiff's claims.

Respectfully submitted,

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Certification of Compliance and Service Pursuant to P.B. §§ 62-7 & 67-2A

I hereby certify that copies of the brief and party appendix have been delivered on September 26, 2024, to counsel of record in compliance with Practice Book § 62-7, as follows:

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Further certification

I further certify that:

1. The brief and party appendix being filed with the appellate clerk are true copies of the electronically-submitted brief and party appendix.

2. The electronically submitted brief and appendix and the filed paper brief and appendix have been redacted or do not contain any names or other personally identifying information that is prohibited from disclosure by rule, state, court order, or case law

3. The brief contains 5,529 words, exclusive of the portions set forth in P.B. § 67-3A.

4. The brief complies with all of the provisions of P.B. § 67-2A.

5. The Plaintiffs did not request any deviations from P.B. § 67-2A.

By: _____
James A. Lenes